

The Packaged Commodities (Regulation) Order, 1975

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[Rule THE-PACKAGED-COMMODITIES-REGULATION-ORDER-1975 of 1975](#)

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[The Packaged Commodities \(Regulation\) Order, 1975](#)

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In exercise of the powers conferred by sub-rule (2) of Rule 114 of the Defence and Internal Security of India Rules, 1971, and in supersession of. the Order of the Government of India in the Ministry of Industries and Civil Supplies (Department of Civil Supplies and Co-operation), No. S.O. 389 (E), dated the 28th July, 1975, the Central Government hereby makes the following order, namely,-

1.

Short title, extent and commencement.

(1)

This Order may be called the Packaged Commodities (Regulation) Order, 1975.

(2)

It extends to the whole of India.

(3)

It shall come into force on the 2nd day of October, 1975.

2.

Definitions.

- In this Order, unless the context otherwise requires,-

(a)

"appointed day" means the day on which this Order comes into force;

(b)

"batch" means,-

(i)

in the case of packages which have been stored, where the total number of such packages does not exceed 100, all such packages, and, when the total number exceeds 100 but does not exceed 10,000 all the packages of the same type and of the same production run;

(ii)

in the case of packages which are on or at the end of the packing line, the maximum hourly output of packages;

(c)

"combination package" means a package intended for retail sale, containing two or more individual packages, or individual pieces, of dissimilar commodities;

(d)

"commodity in packaged form" means a commodity which has been pre-packed, whether in any bottle, tin, wrapper or otherwise, in units suitable for sale, whether wholesale or retail, and such pre-packaging has been so made as to ensure that the commodity in the packaged form cannot be used or consumed without the package or its lid or its cap, as the case may be, being opened;

(e)

"dealer" in relation to any commodity in packaged form, means a person who, or a firm or a Hindu undivided family which, carries on, directly or otherwise, the business of being, selling, supplying or distributing any such packaged commodities whether for cash or for deferred payment or for commission, remuneration or other valuable consideration, and includes a commission agent who carries on such business on behalf of any principal, but does not include a manufacturer or manufacturers of any commodity which is sold or distributed in packaged form except where such commodity is sold by such manufacturer [or any person other than a dealer]

[Added by Notification No. SO 520 (E), dated 2.8.1976.]

;

(f)

"drained weight" in relation to a solid commodity contained in a free flowing liquid, means the weight of such solid commodity after the liquid has been drained for a period of two minutes;

(g)

"fancy package" means a package, the container of which has a fancy trade value of its own, in addition to the value of the commodity contained in such package;

(h)

"group package" means a package intended for retail sale, containing two or more individual packages or individual pieces, of similar but not identical, [whether in quantity or size]

[Substituted by Notification No. SO 520 (E), dated 2.8.1976, for the words 'or dissimilar'.]

commodities;

(i)

"label" means any written, marked, stamped, printed, or graphic matter affixed to, or appearing upon, any commodity or package containing any commodity;

(j)

"manufacturer" in relation to any commodity in packaged form means a person who, or a firm or a Hindu undivided family which/produces, makes or manufactures such commodity and includes a person, firm or Hindu undivided family who or which puts or causes to be put any mark on any packaged commodity, not produced, made or manufactured by

him or it, and claims the commodity in the package to be a commodity produced, made or manufactured, by him or it;

(k)

"maximum permissible error" in relation to the quantity contained in an individual package, means an error, in deficiency or excess, which does not exceed,-

(i)

in relation to commodities specified in the First Schedule, the limits or error specified in that Schedule];

(ii)

in relation to commodities not specified in the First Schedule, the limits of error specified in the Second Schedule;

(l)

"multi-piece package" means a package containing two or more individually packaged or labelled pieces of the same commodity, [of identical quantity]

[Substituted by Notification No. SO 520 (E), dated 2.8.1976.]

, intended for retail sale, either in individual pieces of the package or as a whole;

(m)

"pre-packed commodity" means a commodity which without the purchaser being present, is placed in a package, of whether nature, [so that the product or the quantity of the product]

[Substituted by Notification No. SO 520 (E), dated 2.8.1976.]

contained therein has a pre-determined value and such value cannot be altered without the package or its lid or its cap, as the case may be, being opened or undergoing a perceptible modification;

(n)

"price" in relation to a commodity in packaged form, means any one of the following prices, namely:

(i)

ex-factory price [inclusive of commission payable to wholesalers and retailers and of other charges, including advertising, delivery, packing, forwarding and the like; and]

[Substituted by Notification No. SO 520 (E), dated 2.8.1976.]

exclusive of freight. Central Sales Tax and any tax which may be levied and collect under any law for the time being in force for the retail sale of the package;

(ii)

where the package is sold free on rail at the destination the price payable at such destination;

(iii)

the price of the package exclusive of any tax which may be levied and collected under any law for the time being in force;

(iv)

the retail sale price of the package;

(o)

"retail package" means a package containing any commodity which is produced, distributed or displayed, delivered or stored, for sale through retail sales agencies or other instrumentalities for consumption by an individual or a group of individuals;

(p)

"retail sale price" means the maximum price at which the commodity in packaged form may be sold to the ultimate consumer, inclusive of all taxes, commissions, transport charges and other dues;

(q)

"schedule" means a schedule to this Order;

(r)

"wholesale package" means a package, other than a retail package, containing a commodity for wholesale delivery, distribution or sale or for transport or storage of a number of retail packages.

3.

Particulars to be indicated on every package.

(1)

On and from the appointed day, on person shall pre-pack for retail sale, or cause to be prepacked for retail sale, any commodity unless each retail package in which such commodity is pre-packed bears thereon or on a label securely

affixed thereto, a declaration as to-

(i)

the identity of the commodity in the package:

Provided that where the commodity is easily and correctly identifiable through a transparent container, no declaration as to the identity of such commodity shall be necessary;

(ii)

the quantity, in terms of standard units of weight or measure of the commodity in the package or, where the commodity is packaged or sold by number, the accurate number of the commodity contained in the package.

Explanation. - In the case of a solid commodity contained in a free flowing liquid, the quantity to be stated on the package or on the label thereon, shall be drained weight of such solid commodity;

(iii)

the month and the year in which the commodity is [manufactured or pre-packed]

[Inserted by Notification No. SO 520 (E), dated 2.8.1976.]

:

Provided that no declaration as to the month and the year in which the commodity is [manufactured or pre-packed]

[Substituted by Notification No. SO 520 (E), dated 2.8.1976.]

shall be required to be made on-

(a)

a bottle containing liquid milk or aerated water;

(b)

[any package containing bread and any uncanned package of vegetables, fruits, ice-cream, butter, cheese, fish, meat or the like.]

[Substituted by Notification No. SO 520 (E), dated 2.8.1976.]

(c)

any package containing steel products;

(d)

any cylinder containing liquid petroleum gas or any other gas:

Provided further that where any packaging material, bearing thereon the month in which any commodity was expected to have been pre-packed, is not exhausted during the month, such packaging material may be used for pre-packing the concerned commodity produced or manufactured during the next succeeding month but not thereafter, and, where any such packaging material is exhausted before the expiry of the month, packaging material intended to be used during the next succeeding month may be used for pre-packaging the concerned commodity.

Explanation. - The month and year in which a commodity packed may be expressed in words, or numerals, indicating the month and the year; and

(iv)

the price of the package:

Provided that no declaration as to the price shall be required to be made on-

(a)

[any uncanned package of vegetables, fruits, ice-cream, butter, cheese, fish, meat or the like;]

[Substituted by Notification No. SO. 520 (E), dated 2.8.1976.]

(b)

any bottle containing liquid milk, aerated water, alcoholic beverages, spirituous liquor or the like;

Explanation. - "Liquid milk" does not include condensed milk;

(c)

any package containing a commodity for which any controlled price has been fixed by or under any law for the time being in force.

(2)

Where a package in which a commodity has been pre-packed is opened and the commodity contained therein is sold to one or more persons, the price to be charged from the purchaser shall bear the same proportion to price of the package as the quantity sold to the purchaser bears to the total quantity contained in the package.

(3)

Notwithstanding anything contained in sub-paragraph (1), the manufacturer or, where the manufacturer is not the packer, the packer, may pre-pack or cause to be pre-packed, any commodity without indicating on the package the price of the package if such package is intended to be delivered to a wholesaler, and in the case of such a package, the wholesaler shall, before any such package is issued for retail sale, securely affix on each such package or the label thereon the retail sale price of this package and such price shall be affixed in accordance with the price communicated to him by the manufacturer, or where the manufacturer is not to the packer, the packer.

[(3-A) It shall be the duty of the manufacturer, or, where the manufacturer is not the packer, of the packer, to ensure that the provisions of sub-paragraph (3) are complied with by the wholesaler.]

[Added by Notification No. SO. 520 (E), dated 2.8.1976.]

(4)

Where indication on a package of its net contents and the price is either impossible or impracticable by reason of the size or nature of such package, a label, stamp, sign or tag indicating the net contents and the price shall be attached to each such package.

(5)

The declaration, on a package, as to the quantity contained in the package shall be exclusive of wrappers and the material other than the commodity contained in the package:

Provided that where a package contains a large number of small items of confectionery, each of which is separately wrapped and it is not reasonably practicable to exclude from the net weight, the weight of the wrappers of all the confectionery contained in the package, the net weight declared on the package or on the label thereon may include the weight of such wrappers.

(6)

Where a package is provided with an outside container or wrapper, such wrapper or container shall also contain all the information which are required to bear on the package except where such container or wrapper itself is transparent and information on the package itself are easily readable through such outside wrapper or container.

(7)

The statement on a package or label as to the net weight measure or number of the contents thereof shall not include an expression which tends to qualify such weight measure or number:

Provided that when the commodity contained in the package is such that it is likely to lose or gain weight [or measure]

[Added Notification No. S.O. 520 (E), dated 2.8.1976.]

by reason of the climatic conditions, the net weight or measure indicated on the package or label may be qualified by the words "when packed".

(8)

Where any package containing commodity (pre-packed on or after the appointed day) or the label thereon bears a representation thereon as to the number or servings of the commodity contained therein such, package or label shall also bear thereon a statement as to the net quantity, in terms of weight, measure or number, for each such serving.

4.

Name and address of the packer to be indicated on the each package.

- Every package referred to in paragraph 9 shall also bear thereon the name and complete address of the manufacturer, or, where manufacturer is not the packer, of the packer:

Provided that where by reason of the smallness of a package it is not reasonable practicable to indicate the name and complete address of the manufacturer or packer, on the package it shall be sufficient compliance with this paragraph if a mark or inscription which would enable the consumer to identify the manufacturer or packer, as the case may be, is made on such package.

Explanation. - "Complete address" means, in the case of a company, the address at which its registered office is situated, and, in any other case the name of the street, number (if any) assigned to the premises of the manufacturer or packer and either the name of the city and State where the business is carried on by the manufacturer or packer on the PIN Code.

5.

Sale, delivery and distribution of packaged commodities not complying with the provisions of paragraphs 3 and 4, prohibited.

(1)

No dealer or other person shall sell, deliver or distribute, or cause to be sold, delivered or distributed, or offer, expose or possess for sale, any commodity in a packaged form which was pre-packed on or after the appointed day unless such package complies with the requirements of paragraphs 3 and 4:

Provided that nothing in this sub-paragraph shall apply to any commodity in packaged form which is imported into India.

(2)

On and from the appointed day, every dealer or other person who makes a retail sale of a commodity in packaged form shall, except where the retail sale price is already indicated on such package, indicate the retail sale price on each package but where it is not reasonably practicable to indicate the retail sale price on every package, he shall display, prominently and at a conspicuous place of the premises in which he carries on such retail sale, the retail sale price of the commodity contained in such package [and also a list indicating the rates at which local taxes (including Central Sales Tax, if not included in the price indicated on the package) are leviable on the commodities in packages sold by him.]

[Inserted by Notification No. SO. 520 (E), dated 2.8.1976.]

(3)

In indicating the retail sale price on a package, the person who makes a retail sale, shall adhere to the price list, if any, supplied to him by the manufacturer or packer.

(4)

No dealer or other person shall make any retail sale of a commodity in a packaged form at a price exceeding the retail sale price thereof:

[Provided that-

(a)

thereafter any commodity has been pre-packed for sale, any tax payable in relation to such commodity, is increased or any fresh tax is imposed on such commodity, the dealer shall not make any retail sale of such commodity, at a price exceeding the revised retail price communicated to him by the manufacturer or, where the manufacturer is not the packer, the packer, and it shall be the duty of the manufacturer or packer, as the case may be, to indicate, by not less than two advertisements in one or more newspapers, as also by circulation of notices to the dealers and to the Central Government and State Government and the Government of the Union Territories, the revised prices of such package; but the difference between the price marked on the package and the revised prices shall not in any case, be higher than the extent of the increase in the tax or, in the case of imposition of a fresh tax, higher than the fresh tax so imposed;

(b)

the dealer shall not charge such revised prices in relation to any package except those packages which bear markings indicating that they were pre-packed in the month in which such tax has been increased or fresh tax has been imposed or the month immediately following the month aforesaid;

(c)

where the revised prices are lower than the price marked on the package, the dealer shall not charge any price in excess of the revised prices irrespective of the month in which such commodity was pre-packed:

Provided further that nothing contained in the foregoing proviso shall apply to a package which is not required, under this order, to indicate the month and the year in which it was pre-packed.]

[Added by Notification No. S.O. 193 (E), dated 15.3.1976.]

6.

Manner of declaration.

- Every declaration which is required to be made on a package under this order shall be-

(a)

a legible, prominent, definite and plain;

(b)

conspicuous as to size, number and colour;

(c)

in such style or type of lettering as to be boldly, clearly and conspicuously presented in distinct contrast to the other type, lettering or graphic material used on the package;

and shall be printed, painted, inscribed or otherwise made on the package in a colour which contrasts conspicuously with the background of the label:

Provided that where whole of such information is blown, formed or molded on a glass or plastic surface or where the information is embossed or perforated on a package, such information shall not be required to be presented in a contrasting colour.

7.

Declarations on combination and other packages.

(1)

The declarations on a combination package shall contain an indication of the net weight, measure or number, as the case may be, in respect of each commodity contained to the package and the price of the combination package, and where individual commodities in the combination package are packaged and labeled separately each such individual commodity shall bear thereon a declaration as to the net quantity contained in such individual piece and the price thereof.

(2)

The declaration on a group package shall contain the number of pieces of such commodity contained in such package, followed by the net weight measure or number, as the case may be, the total number of pieces contained in group package and the price of the group package; and where the individual pieces in a group package are packaged and labeled separately and are capable of being sold as individual pieces, each such individual pieces shall bear thereon a declaration as to the net quantity contained in such individual piece and the price thereof.

(3)

Every multi-piece package shall bear on the outside of the package a declaration of the number of individual pieces of the commodity contained therein, the total quantity contained in the multi-piece package [the month and the year in which the commodity was manufactured or pre-packed, name and address of the manufacturer, or where the manufacturer is not the packer, of the packet]

[Inserted by Notification No. SO. 520 (E), dated 2.8.1976.]

, and the price of the multi-piece package; and when the individual piece of a multi-piece package is packaged and labelled separately and is capable of being sold separately, each such individual piece shall bear thereon a declaration as to the quantity contained in such individual piece and the price thereof.

(4)

[Where the dimensions and weight, or combination thereof, of a commodity has or have a relationship to the price of that commodity, the declaration of quantity on the package containing such commodity shall also include a declaration as to such dimensions, weight or combination.]

[Substituted by Notification No. SO. 520 (E), dated 2.8.1976.]

(5)

In the case of a package containing sheets like, aluminium foil facial tissues, waxed paper, toilet paper or any other type of sheet, the declaration of quantity on the package containing such sheets shall also include a statement as to the number of usable sheets contained in the package and the dimensions of each such sheets.

(6)

In relation to fancy packages, the informations required to be indicated on the package may be indicated at the bottom of the package or by a tag securely attached to the package.

8.

Determination of quantity and error by authorised persons at the premises of the manufacturer or packer.

(1)

Any person authorised by the Central Government in this behalf [hereinafter referred to as the authorised person]

[Every officer of the above the rank of Assistant Controller of Weights and Measures in a State vide Notification No. SO. 462 (E), dated 4.9 1975.]

may carry out checks of packages at the premises of the manufacturer, or, where the manufacturer is not the packer, of the packer for the purpose of determining whether the quantity of the commodity contained in a package corresponds to the quantity declared thereon or on the label affixed thereto and to check their conformity to this order, and for this purpose the authorised person shall have power to enter into the premises of the manufacturer or packer, as the case may be, and to draw [samples at random from each batch of packages in accordance with the provisions of the Third Schedule.]

[Substituted by Notification S.O. (E), dated 2.8.1976.]

(2)

The authorised person shall carry out tests with regard to each of the packages drawn by him as samples and shall ascertain whether the net quantity contained in each of the said packages corresponds to the net quantity declared on each such package, and in case it does not, determine the extent of the error and shall make a written record of the detailed results of the tests carried out by him and obtain the signatures of the manufacturer or packer or any person authorised by the manufacturer or packer in this behalf, or, in the absence of any of them, of any competent witness, on the written record containing such results.

(3)

On the completion of the tests, the authorised person shall make out a report indicating therein his findings about the actual net quantity or the extent of error and obtain signatures of the manufacturer or packer or any person authorised by the manufacturer or packer in this behalf, or, in the absence of any of them, of a competent witness on the said report, and forward the report to the Central Government or such authority as may be specified by the Central Government in this behalf.

(4)

If, as a result of the tests aforesaid, it is found by the authorised person that the statistical average of the net quantity contained in the sample packages checked by him is equal to, or in excess of the quantity declared on the packages, it shall be deemed to be within the maximum permissible error.

(5)

If, as a result of the tests aforesaid, it is found that,-

(a)

the statistical average of the quantity contained in the sample packages checked by the authorised person is less than the quantity declared on the package; or

(b)

the quantity contained in more than ten per cent of the sample packages checked by the authorised person exceeds the maximum permissible [the error in deficiency]

[Substituted by SO. 520 (E), dated 2.8.1976.]

specified in the concerned Schedule to this Order in relation to the commodity concerned, the manufacturer, or, where the manufacturer is not the packer, the packer, shall be deemed to have contravened this Order.

(6)

For the avoidance of doubts, it is hereby declared that no test as to the net quantity of any commodity contained in a package shall be carried on at any premises except at the premises of the manufacturer or, where the manufacturer is not the packer, of the packer.

9.

Presumption in case of existing packages.

- Any commodity in a packaged form which does not bear thereon informations required to be specified by this Order, shall be presumed, for a period of three months from the appointed day, to have been-

(a)

pre-packed before the appointed day, or

(b)

pre-packed with packaging materials which were in stock before the appointed day, and nothing in this Order shall apply, during the period aforesaid, to or in relation to any such package.

10.

Public servants who may make report for any contravention of this Order.

- For the purposes of sub-rule (1) of Rule 183 of the Defence and Internal Security of India Rules, 1971, a report with regard to the contravention of any provisions of this Order,-

(a)

by any manufacturer or packer, shall be made by a public servant other than an officer of the Government of India of or above the rank of a Joint Secretary;

(b)

by any other person, shall be made by any officer of the State Government below the rank of an Executive Magistrate or of an equivalent rank.

11.

Order not to apply to certain packages.

- Nothing in this Order shall apply to any package containing a commodity if,-

(a)

it is needed for use in any industry, whether as raw material or otherwise:

Provided that this exemption shall not apply to any yarn which is sold in "hanks" to handloom weavers;

(b)

it is needed for the purpose of servicing and industry:

[Explanation. - In clauses (a) and (b) of this paragraph, the expression "industry" does not include any workshop, service station or any other place where servicing repairing of any motor vehicle within the meaning of the [Motor Vehicles Act, 1939,]

[Inserted by S.O. 520 (E), dated 2.8.1976.]

is undertaken;]

(c)

it is a wholesale package;

(d)

it is needed for the purpose of mining or quarrying;

(e)

the net weight or measure, in the case of vanaspati, edible oils or animal feed, exceeds fifteen kilograms or fifteen litres;

(f)

the net weight or measure of [the commodity if sold by weight or measure]

[Substituted by S.O. 520 (E), dated 2.8.1976.]

is twenty grams or twenty millilitres, or less;

(g)

it is intended for bulk consumption by any industry or trade;

Explanation. - A commodity shall be deemed to be intended for bulk consumption of its net weight or measure exceeds 500 kilograms or 500 litres or 500 metres;

(h)

it is intended for the purpose of export;

Provided that if any such package is found to be sold or distributed for consumption in any part of the territory of India, it shall be liable to be forfeited to Government;

(i)

it contains bidis or incense sticks.

12.

Power to exempt.

- Central Government may, if it is of opinion that it is necessary or expedient so to do, exempt any manufacturer, packer or class of manufacturers or packers from all or any of the provisions of this Order.

First Schedule

[See Paragraph 2(k) and sub-paragraphs (4) and (5) of Paragraph 8]

Maximum permissible error in relation to the quantity contained in an individual package

Serial No

Description of Commodity

Declared quantity

Maximum permissible error in excess or in deficiency

1

2

3

4

1.

Biscuits

(i)
Not more than 500 gm.

7.0
percent.

(ii)
More than 500 gm. but not more than 1 kg.

6.0
percent.

2.
Bread

(i)
Not more than 500 gm.

6.0
"

(ii)
More than 500 gm. but not more than 1 kg.

4.0
"

3.
Cement

(i)
50 kg. bag at the factory

2.0
"

4.
Detergents

(ii)
50 kg. bag in retail trade 1 kg. or less

3.0
"

5.
Ghee Vanaspati and Edible oils

(i)
Not more than 2 kg.

1.5
"

(ii)
More than 2 kg. but not more than 4 kg.

1.25
"

(iii)
More than 4 kg.

0.6
"

6.
Infant Foods

(i)
Not more than 100 gm.

5.0
percent.

(ii)

More than 100 gm. but not more than 1 kg.

4.0

"

(iii)

More than 1 kg.

3.0

"

7.

Milk

(i)

Not more than 100 ml.

5

ml.

(ii)

More than 100 ml. but not more than 250 ml.

8

ml.

(iii)

More than 250 ml.

10

ml.

8.

Provisions sold in Polythene Bags or Plastic Bags.

Foodgrains, pulses, edible seeds, spices (whole or broken but not powdered). Powdered commodities (such as, chili powder, pepper powder, coffee powder, washing soda, atta, table salt and the like), dry fruits, seeds and the commodities (such as, sugar, gur, khandsari and the like).

(i)

Not more than 100 gm.

3.0

percent.

(ii)

More than 100 gm. but not more than 500 gm.

2.0

"

(iii)

More than 500 gm. but not more than 1 kg.

1.5

"

(iv)

More than 1 kg.

0.75

"

9.

Safety Match Boxes

Containing not more than 50 sticks

8.0

percent.

10.

Tea

2.0

percent at the place of packing.

Second Schedule

[See Paragraph 2(k) and sub-paragraphs (4) and (5) of Paragraph 8]

Maximum permissible errors in relation to packaged commodities as specified in the First Schedule

1. Classification of commodities packaged or sold by weight or volume. - (1) For the purpose of specifying the maximum permissible errors, packaged commodities not specified in the First Schedule, which are intended to be sold, delivered or distributed by weight or volume, shall be devised into two classes, namely, Class 'A' and Class 'B'.

(2)

The following categories of commodities shall fall within Class 'A', namely,-

(a)

commodities contained in a package, the net weight or volume of which does not exceed 25 grams or 25 cubic centimetres or millilitres;

(b)

commodities, the flow properties, density, or both, of which cannot be maintained constant except with the help of considerable special technical effort;

(c)

commodities containing several substances of different densities or different physical phases, the packaging of which requires several operations;

(d)

commodities which require several operations for packaging;

(e)

commodities which after they have been packed, are subjected to additional processing; such as, heat treatment, which likely to affect the weight of the commodities in irregular and unpredictable manner;

(f)

commodities composed of pieces, fragments or grains in which the maximum weight of each piece, fragment or grain is greater than or equal to the maximum permissible error corresponding to the net quantity contained in that package, if the commodity, is considered as belonging to Class 'B';

(g)

liquid commodities.

(3)

Any commodity which does not fall within Class 'A' shall fall within Class 'B'.

2. Maximum permissible errors on net quantity declared by weight or volume. - (1) The maximum permissible error, in excess or in deficiency, in the net quantity to weight or volume of any commodity, belonging to Class 'A' or Class 'B' shall be as specified in Table I:

Table I

Maximum permissible errors on net quantities declared by Weight or by Volume

Maximum permissible error in excess or in deficiency

Serial No.

Declared quantity gm. or cm.3(ml.)

Class A

Class B

as percentage of declared quantity

gms. or cm. 3(ml.)

as percentage of declared quantity

gms. or cm. 3(ml.)

1

2

3

4

5

6

(i)

Not more than 25

9

...

...

...

(ii)

More than 25 but not more than 53

9

...

4.5

...

(iii)

More than 50 but not more than 100

...

4.5

...

2.5

(iv)

More than 100 but not more than 200

4.5

2.25

...

...

(v)

More than 200 but not more than 300

...

9

...

4.5

(vi)

More than 300 but not more than 500

3

...

1.5

...

(vii)

More than 500 but not more than 1,000

...

...

1.5

7.5

(viii)

More than 1,000

1.5

...

0.75

...

(2)

The maximum permissible error specified as percentage shall be rounded off to the nearest one-tenth of a gram or cubic centimetre (millilitre).

3. Maximum permissible errors on net quantity declared by length, area or number. - The maximum permissible error, in excess or in deficiency, in the net quantity declared in terms of length, area and number shall be as specified in Table II:

Table II

Maximum permissible errors on net quantities declared by length, area or number

Serial No.

Quantity declared

Maximum permissible error in excess or in deficiency

(i)

In units length

2 per cent of declared quantity up to 10 metres and thereafter 1 per cent of declared quantity

(ii)

In units of area

4 per cent of declared quantity up to 10 sq. metres and thereafter 1 per cent of declared quantity.

(iii)

By number

2 per cent of declared quantity.

[Third Schedule]

[Inserted by Notification No. 520 (E), dated 2.8.1976.]

[See Sub-paragraph (1) of Paragraph (8)]

Manner of Selection of Samples of Packages

1. Where, for the determination of the net quantity of any commodity contained in a package, it is necessary to open the package taken by way of sample, and it is not possible to refill such package such sample shall be selected at random having regard to the total number of packages in the batch. In such a case the number of packages to be selected as samples shall be the number specified in column (2) of Table I, corresponding to the entry in column (1) of that Table:

Table I

Number in batch

Number of sample

1

2

Less than or equal to 500

8

501 to 3200

13

More than 3200

20

2. Where for the determination of the net quantity of any commodity contained in a package, it is not necessary to open the package, taken by way of sample, or where it is necessary to open one or two packages, taken by way of samples of determining the tare, such sample shall be selected at random having regard to the total number of packages in the batch. In such a case, the number of packages to be selected as samples shall be the number specified in column (2) of the Table II, corresponding the entry in column (1) of that Table:

Table II

Number of batch

Number of sample

1

2

100 to 150

...
20
151 to 280
...
32
281 to 500
...
50
501 to 1200
...
80
1201 to 3200
...
125
3201 and over
...
200

3. Where for the determination of the net quantity of any commodity contained in a package, it is necessary to take samples of packages stored by the manufacturer or packer in a warehouse, godown or at any other place, the sample shall be selected at random, from every batch of packages and shall be packed out from the top, bottom, centre, right, left, front, rear etc. of the stocks so that the samples may adequately represent the packages in the batch.

4. Where for the determination of the net quantity of any commodity contained in a package, it is necessary to take samples from the place where the package is being filled such sample shall be selected from among the packages which have already been filled, or in the alternative, the requisite number of empty containers may be taken over and each of them shall be adequately marked for proper identification and the tare of each container shall be accurately noted and thereafter the marked out containers shall be introduced at random in the packing process so that, after the packages are filled it may be possible to determine whether the packages to contain the net quantity of the commodity as declared in the container.

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